

which were at the time of the commencement of the proceedings domiciled in the United Kingdom, and any order made by the court in relation to any such decree, shall, if the proceedings were commenced before the passing of this Act, be as valid, and be deemed always to have been as valid, in all respects, as though the parties to the marriage had been domiciled in India.

Short title.

2. This Act may be cited as the Indian Divorces (Validity) Act, 1921.

CHAPTER 19.

An Act to amend the law relating to the Housing of the People, and for purposes in connection therewith. [1st July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of s. 1 of
9 & 10 Geo. 5.
c. 99.

1.—(1) Subsection (2) of section one of the Housing (Additional Powers) Act, 1919 (which prescribes the conditions under which grants may be made to persons constructing houses), shall have effect, and shall be deemed always to have had effect, as though two years and six months were therein substituted for twelve months :

Provided that any certificate approving a proposal to construct houses issued before the commencement of this Act in pursuance of a scheme made under subsection (1) of the said section shall cease to have effect on the first day of July, nineteen hundred and twenty-one, so far as relates to any house the construction of which has not been commenced before that date.

(2) Any conditions prescribed after the passing of this Act by the Minister of Health, (in this Act referred to as "the Minister"), under paragraph (a) of the said subsection (2) shall be prescribed by regulations made by the Minister, and any regulation made in pursuance

of this subsection shall be laid before both Houses of Parliament as soon as may be after it is made, and, if an address is presented by either House within twenty-one days on which that House has sat next after the regulation is laid before it praying that the regulation may be annulled, His Majesty in Council may annul the regulation, but without prejudice to the validity of anything previously done thereunder.

2. Section five of the Housing (Additional Powers) Act, 1919 (which gives power to local authorities to prohibit operations which interfere with the provision of dwelling-houses), and all orders made under that section shall cease to have effect.

Repeal
of s. 5 of
9 & 10 Geo. 5.
c. 99.

3.—(1) Where a housing scheme approved under section one of the Housing, Town Planning, &c., Act, 1919 (which requires local authorities within the meaning of Part III. of the Housing of the Working Classes Act, 1890, to prepare and submit to the Minister schemes for the exercise of their powers under the said Part), is being carried into effect by a local authority outside their own area, that authority shall, subject to the approval of the Minister, have power—

Execution of
works, &c.,
by local
authorities
outside their
own districts
in connec-
tion with
housing
schemes.
9 & 10 Geo. 5.
c. 35.
53 & 54 Vict.
c. 70.

- (a) to execute any works which are necessary for the purposes, or are incidental to the carrying out, of the scheme, subject to entering into agreements with the council of any county or district in which the scheme is being carried out as to the terms and conditions on which any such works are to be executed :
- (b) to borrow money for the purpose of defraying any expenses (including, if the Treasury so approve, interest payable in respect of any period before the completion of the scheme or a period of five years from the date of the borrowing, whichever period is the shorter, on money borrowed under this section) incurred by the local authority in connection with any such works as aforesaid: Provided that any order of the Minister, in so far as it relates to the sanction of a loan under the foregoing provisions for the purpose of the payment of interest payable in respect of money borrowed, shall be provisional only and shall be of no effect until confirmed by Parliament :

(c) to advance to any such council as aforesaid such sums as may by reason of any agreement made under this section be required by that council in connection with the construction by the council, of any such works as aforesaid.

(2) The council of any county or district in which a scheme is being carried out as aforesaid shall have power, with the approval of the Minister, to borrow money for the purposes of any agreement entered into by the council under this section.

Extension of
s. 7 (2) of
9 & 10 Geo.5.
c. 99.

4. The power conferred on the Minister by subsection (2) of section seven of the Housing (Additional Powers) Act, 1919, of imposing by general or special order conditions with regard to the raising by a county council of money to be lent by the council to a local authority within their area for the purposes of the Housing Acts, 1890 to 1919, shall be deemed to include, and always to have included, a power to impose conditions with respect to the borrowing by a local authority from a county council of money so raised.

Rate of in-
terest on
certain
advances and
expenses.
62 & 63 Vict.
c. 44.
9 Edw. 7. c. 44.

5. The rate of interest on advances under section one of the Small Dwellings Acquisition Act, 1899 (which empowers a local authority to advance money to residents in houses for the purchase thereof), and on expenses incurred by a local authority under section fifteen of the Housing, Town Planning, &c., Act, 1909 (which provides for the recovery from the landlord by the local authority of expenses incurred by them in rendering a house fit for human habitation), or under section twenty-eight of the Housing, Town Planning, &c., Act, 1919 (which provides for the recovery from the owner by the local authority of expenses so incurred as aforesaid), shall, as regards advances made and expenses incurred after the commencement of this Act, be such rate as the Minister may, with the approval of the Treasury, from time to time by order fix, and different rates of interest may be fixed for different purposes and in different cases.

Amendment
as to mean-
ing of "pub-
lic utility
society"
and "autho-
rised associa-
tion" in

6. Part I. of the Housing, Town Planning, &c., Act, 1919, shall have effect as though in the definition of the expression "public utility society" in section forty of that Act the words "the issue of any share or loan capital with interest or dividend exceeding the rate for the time being prescribed by the Treasury" were substituted for

the words "the payment of any interest or dividend at a rate exceeding six per cent. per annum," and section ten of the Housing (Additional Powers) Act, 1919 (which authorises the acquisition of land for the purposes of garden cities or town planning schemes), shall have effect as though in the definition of "authorised association" in subsection (4) thereof the words to be substituted as aforesaid were substituted for the words "payment of any interest or dividend at a higher rate than six per centum per annum," and any public utility society or authorised association shall have, and shall be deemed always to have had, power, notwithstanding anything in their rules or constitution prohibiting the payment of any interest on loan capital at a rate exceeding six per cent. per annum, to raise money on loan at a rate of interest not exceeding the rate for the time being prescribed by the Treasury as aforesaid.

Part I. of
9 & 10 Geo.5.
c.35, and s.10
of 9 & 10
Geo. 5. c. 99.

7.—(1) Subject to such conditions as the Treasury may prescribe and up to an amount approved by the Treasury, the Public Works Loan Commissioners may advance by way of loan to any authorised association, within the meaning of section ten of the Housing (Additional Powers) Act, 1919, such money as the association may require for the purpose of developing a garden city in accordance with a scheme approved by the Minister, and section sixty-seven of the Housing of the Working Classes Act, 1890 (which makes provision with respect to loans by the Commissioners aforesaid), as amended by section twenty of the Housing, Town Planning, &c., Act, 1919, shall, subject to the provisions of this section, apply to any advance made in pursuance of this section as it applies to a loan to a public utility society.

Advances
for develop-
ment of gar-
den cities.

(2) The power to make advances under this section shall be exercised during such period as the Treasury may prescribe.

8.—(1) The London County Council shall, subject to such conditions as may be prescribed by regulations made by the Minister with the consent of the Treasury, repay to the council of a metropolitan borough any loss which may be incurred by that council in carrying out a scheme to which section seven of the Housing, Town Planning, &c., Act, 1919, applies, and any payments so made by the London County Council shall be deemed to

Amendment
of s. 41 of
9 & 10 Geo.5.
c. 35.

have been made as part of the expenses incurred by them in carrying out a scheme to which that section applies.

(2) Every regulation so made shall be laid before both Houses of Parliament as soon as may be after it is made, and, if an address is presented by either House within twenty-one days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, His Majesty in Council may annul the regulation, but without prejudice to the validity of anything previously done thereunder.

Subscrip-
tions by
local autho-
rities to local
savings
committees.

9. A local authority within the meaning of Part III. of the Housing of the Working Classes Act, 1890, may, subject to the approval of the Minister, contribute to the expenses of any local savings committee established for their area or any part of their area.

Application
to Ireland.

10. This Act in its application to Ireland shall have effect with the following modifications:—

- (1) References to the Minister of Health or the Minister shall be construed as references to the Local Government Board for Ireland, and the reference to the Public Works Loans Commissioners shall be construed as a reference to the Commissioners of Public Works in Ireland;
- (2) References to Part I. and to sections one, twenty, twenty-eight, and forty of the Housing, Town Planning, &c., Act, 1919, shall respectively be construed as references to Part I. and to sections one, sixteen, twenty-three, and thirty-three of the Housing (Ireland) Act, 1919, and other references to the first-mentioned Act shall not apply:
- (3) A certificate for the purposes of subsection (2) of section one of the Housing (Additional Powers) Act, 1919, may be granted by a local authority within the meaning of Part III. of the Housing of the Working Classes Act, 1890, as respects houses situate outside its area, if they are situate within such distance from the boundary of that area as may be specified in a scheme made under the said section one, and are not situate within the area of any other such local authority:

9 & 10 Geo.5.
c. 45.

- (4) Where a petition has been presented under section six of the Housing of the Working Classes (Ireland) Act, 1908, respecting a portion only of a Provisional Order made by an inspector of the Local Government Board for Ireland, that Board may divide the order into two orders, and the new order containing the portion of the original order to which the petition does not relate may be confirmed in like manner as an order in respect of which no petition has been presented, and the new order containing the portion of the original order to which the petition relates may be confirmed or disallowed in pursuance of the said section : 8 Edw. 7.
c. 61.
- (5) The Housing of the Working Classes (Ireland) Acts, 1890 to 1919, and this Act, so far as it amends those Acts, may be cited together as the Housing of the Working Classes (Ireland) Acts, 1890 to 1921 :
- (6) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day. 10 & 11
Geo. 5. c. 67.
- 11.**—(1) This Act may be cited as the Housing Act, 1921. Short title,
extent, and
repeal.
- (2) The Housing (Additional Powers) Act, 1919, and this Act, so far as it amends that Act, may be cited together as the Housing (Additional Powers) Acts, 1919 and 1921, and the Housing Acts, 1890 to 1919, and this Act, so far as it amends those Acts, may be cited together as the Housing Acts, 1890 to 1921.
- (3) This Act shall not apply to Scotland.
- (4) The enactments specified in the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.
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Section 11.

SCHEDULE.**ENACTMENTS REPEALED.**

Session and Chapter.	Short Title.	Extent of Repeal.
62 & 63 Vict. c. 44.	The Small Dwellings Acquisition Act, 1899.	Subsection (3) of section one.
9 Edw. 7. c. 44.	The Housing, Town Planning, &c., Act, 1909.	In subsection (5) of section fifteen the words "at a rate not exceeding five pounds per centum per annum."
9 & 10 Geo. 5. c. 35.	The Housing, Town Planning, &c., Act, 1919.	In subsections (3) and (4) of section twenty-eight the words "at a rate not exceeding five pounds per centum per annum," and subsection (2) of section forty-one.
9 & 10 Geo. 5. c. 45.	The Housing (Ireland) Act, 1919.	In subsections (3) and (4) of section twenty-three the words "at a rate not exceeding five per centum per annum."
9 & 10 Geo. 5. c. 99.	The Housing (Additional Powers) Act, 1919.	Section five.

CHAPTER 20.

An Act to provide for the apportionment of annuities created by the redemption of tithe rentcharge.
[28th July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Apportionment of tithe redemption annuities.

1.—(1) An order of apportionment of an annuity charged on any land under section four of the Tithe Act, 1918, or under this Act, may be made by the Minister of